



**Merit Policy on Prevention of Sexual Harassment
v3.6**

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Details	Name & Job Role	Signature	Date
Prepared by	POSH Committee		19 Dec 2025
Reviewed by	Kathy Theophilus		
Approved by	Kathy Theophilus		
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CHANGE HISTORY

Author	Approved By	Change Description	Changes	Ver. No.	Date
POSH Committee	Kathy Theophilus	Policy to adhere to "The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013"	• Updates made to timelines as prescribed in the Act. • Revision of inquiry procedure. • Addition of annexure I (complaint form).	v1.1	15 Jun 2018
POSH Committee	Kathy Theophilus	Committee member details for Chennai	POSH committee member updated to include the new members from Chennai	v1.2	24 Jul 2018
POSH Committee	Kathy Theophilus	Committee member details for Mumbai	POSH Committee members updated to include new members from Mumbai	v1.3	15 Nov 2018
POSH Committee	Kathy Theophilus	Merit logo change and committee member details for Chennai	• New Merit logo updated • New Chennai committee members details updated	v1.4	21 Feb 2020

Author	Approved By	Change Description	Changes	Ver. No.	Date
POSH Committee	Kathy Theophilus	Updated policy to reflect Work From Home scenarios and amended complaint form template	- Added 'work from home' to workplace definition - Excluded persons at home from respondent's definition - Added reference to Harassment and Bullying Policy. - Updated Complaint Form	v2.0	14 Aug 2020
POSH Committee	Kathy Theophilus	Included all genders and amended Committee details	- Added governing principles - Updated policy to cover employees of all genders - Updated Mumbai Committee member details - Added Apex Committee details	v3.0	04 Sep 2020
Shirley Hepsibah	Kathy Theophilus	Deletion of previous externals members and addition of details of a new common external member for the POSH Committee	Added details of a common external Committee member for both Chennai and Mumbai	v3.1	05 Jan 2021

Shirley Hepsibah	Shirley Hepsibah	Committee chairperson and member details for Chennai	Updated details on new Committee chairperson and new Committee member	v3.2	09 Feb 2021
Shirley Hepsibah	Shirley Hepsibah	Logo and Font updated	Merit logo updated along with revised font to Arial and font size 11	v3.3	27 May 2021
Bargav N B	Gladson Richard	Logo and Format change	New Merit Logo updated	v3.4	25 May 2022
POSH Committee	Kathy Theophilus	Policy updated to ensure compliance with Bharatiya Nyaya Sanhita	• Updates made with respect to timelines based on the POSH Act • Additional section added based on the new clause in BNS • Clause related to Recommendations added	v3.5	23 Jul 2024
Kelp (external vendor)	Kathy Theophilus	Policy updated to add more clarity with respect to the procedure to be followed by the Committee	Clauses related to Governing Principles, definitions of Aggrieved Person and Special Educator, Responsibilities of employee, Powers and Responsibilities of IC, Essentials of a complaint, Confidentiality etc. added	v3.5	21 Mar 2025
POSH Committee	Kathy Theophilus	Minor changes made to correct typos	Formatting and grammatical changes made to finalize the Policy	v3.5	15 Apr 2025

POSH Committee	Kathy Theophilus	Re-constitution of POSH Committee	Updates have been made to reflect the following changes: • POSH Committee has been re-constituted • Mumbai and Chennai POSH Committees have been combined into a single re-constituted committee • Few former members have left, and two new members have been appointed.	v3.6	19 Dec 2025
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I. Introduction

This is the policy of Merit for prevention of sexual harassment at the workplace.

All employees are expected to uphold the highest standards of ethical conduct at the workplace and in all their interactions with business stakeholders. This means that employees have a responsibility to:

- Treat each other with dignity and respect;
- Follow the letter and spirit of the law;
- Refrain from any unwelcome behaviour that has sexual connotation (of sexual nature);
- Refrain from creating hostile atmosphere at workplace; and
- Report sexual harassment experienced and/or witnessed to appropriate authorities and abide by the complaint handling procedure of the company.

II. Purpose

- To enable employees to work in an environment free from any form of sexual harassment.
- To clearly define Merit's stance against sexual harassment
- To define redressal mechanisms and the actions the company may take in case a complaint is substantiated.

III. Governing Principles

- This policy is governed by the broad principles of the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 ("Act") read with Bharatiya Nyaya Sanhita, 2023.
- While the mandate of the Act is for all workplaces in India to provide a safe and secure working environment free from sexual harassment for all women, Merit extends these principles to all its employees irrespective of their gender.
- If any aspect relating to sexual harassment not explicitly covered in this policy is provided for by the law, then the law will be applicable. In case of any conflict between the policy and the law, the law will prevail.

IV. Scope

- This policy is applicable to all Merit employees at the Merit workplace (as defined hereunder).
- It is to be noted that although protection under law is only available to women (including transwomen), this policy extends to all Merit employees.
- Further, any complaints received under this policy will be handled by the Internal Committee of the respective location, as per the guidelines provided.

V. Definitions

1. Sexual Harassment

Sexual harassment occurs where a person uses sexual behaviour to control, influence or affect the career, salary or job of another person. It can also occur between co-workers, or between an employee and someone that the employee deals with within the course of his/her work who is not employed by the Company. "Sexual Harassment" includes but is not limited to any one or more of the following unwelcome acts or behaviour (whether directly or by implication), between individuals of the same or opposite sex, namely:

- Unwelcome sexual advances involving verbal, non-verbal, or physical conduct, whether implicit or explicit, including eve-teasing and comments on a person's body or clothing;
- Physical contact or advances including molestation, touching, stalking, sounds which have explicit and /or implicit sexual connotation;
- Demand or request for sexual favours in exchange for promotion, retention or tangible employment actions;
- Physical confinement, teasing, voyeurism, innuendos (jokes with hidden meanings/double meanings) and taunts with implicit sexual connotation;
- Display of pictures, signs, videos etc. (including pornography) of a sexual nature in the workplace;
- Repeatedly asking to socialize or continued expressions of sexual interest against a person's wishes;
- Giving gifts or leaving objects that are sexually suggestive.

In addition to this, any of the following circumstances occurring in relation or in connection to any sexually determined act or behaviour shall constitute sexual harassment:

- Implied or explicit promise of preferential treatment in employment;
- Implied or explicit threat of detrimental treatment in employment;
- Implied or explicit threat about the present or future employment status;
- Interference with the person's work or creating an intimidating or offensive or hostile work environment; or
- Humiliating treatment likely to affect health or safety.

Whether sexual harassment has occurred or not does not depend on the intention of the individual but rather the impact of the action on the aggrieved person.

2. Workplace

Workplace is defined as:

- Registered offices of Merit.
- Any place visited by the employee during the course of employment, including

transportation provided by Merit for undertaking such a journey. This shall also include office trips planned by the company. Office trips in this context shall refer to team outings organized by Merit, business trips undertaken and conferences attended by a Merit Employee on behalf of Merit etc.

- In case an employee is working from home, the workplace shall also include the employees' home from where they discharge their duties.

3. Merit Employee

Merit Employee/Employee includes any person carrying out any work on behalf of Merit and may have been hired as permanent, temporary, contracted or on retainership basis, part-time basis etc. either directly or indirectly or through vendor organization.

4. Appointing authority/disciplinary authority

The Head of Data Operations is the appointing authority who makes decisions on the members who should be part of the POSH Committee.

5. Complainant and/or Aggrieved Person

- A complainant is any Merit Employee who is subject to alleged sexual harassment.
- Aggrieved Person in relation to a workplace shall mean any person (woman, man or transgender) of any age, whether employed or not, who alleges to have been subjected to any act of sexual harassment by the respondent.

6. Respondent

- Respondent is a person of any gender whose alleged conduct is the subject of a complaint, irrespective of the capacity in which they are related to Merit. This includes, but is not limited to, full-time employees, part-timers, contract employees, vendors, suppliers, visitors and clients.
- Respondent does not include persons (other than other Merit employees) that the employee may interact with at home during or outside working hours, when they work from home.

7. Special Educator

A Special Educator means a person trained in communication with people with special needs in a way that addresses their individual differences and needs.

8. Employer

A person responsible for management, supervision and control of the workplace. The Employer will be responsible for the purpose of implementation and execution of this policy and IC recommendations.

9. POSH Committee

An internal complaints committee (IC) constituted at Merit to provide all employees with a mechanism for redressal of their complaints related to sexual harassment.

VI. Policy

Merit aims to promote a work culture wherein employees respect each other irrespective of the differences amongst them.

Merit will not condone or tolerate any form of verbal or physical conduct which is sexual in nature or behavior of any form which interferes or disrupts another individual's work performance or creates a hostile or intimidating work environment or which results in harassment.

The purpose of this Policy is to guarantee a secure and safe work environment to all employees, free from any form of sexual harassment, and provide a redressal mechanism for complaints related to sexual harassment.

VII. Responsibility of Employees

It is the responsibility of all employees of Merit to respect the rights of others and to never encourage harassment. It can be done by:

- Refusing to participate in any activity which constitutes harassment;
- Supporting the person to reject unwelcome behaviour;
- Acting as a witness if the person being harassed decides to lodge a complaint;
- It is also responsibility of employees to cooperate with the IC if and when called upon.

VIII. Who can complain?

A complaint can be filed by an aggrieved person in writing in format provided by the Company (in Appendix 1) or otherwise, as per the requirements as given under. The Act allows the following to file a complaint:

- If the Aggrieved person is unable to make a complaint on account of her/his/their incapacity, a complaint may be filed by:
 - their relative or friend; or
 - a special educator; or
 - a qualified psychiatrist or psychologist; or
 - the guardian or authority under whose care they are receiving treatment or care; or
 - any person who has knowledge of the incident jointly with the Aggrieved person's relative or friend or a special educator or qualified psychiatrist or psychologist, or guardian or authority under whose care they are receiving treatment or care.

- In case of Complainant's death: Any person with knowledge of incident with written consent of her/his/their legal heir.
- In case the complainant is unable to file the complaint for some other reason: By any person who has knowledge of the incident with her/his/their written consent.

IX. Internal Committee

To prevent instances of sexual harassment and to receive and effectively deal with complaints pertaining to the same, an Internal Committee (IC) has been constituted for each administrative unit / office of the Company. The details of the Committee are notified to all applicable persons in the location (workplace).

A. Constitution: The IC at each location shall comprise of:

- Presiding Officer: A woman employed at a senior level in the organization or workplace;
- At least two members from amongst employees, committed to the cause of women or who have had experience of social work or have legal knowledge;
- One external member from amongst non-governmental organizations or associations committed to the cause of women or a person familiar with the issues relating to sexual harassment; and
- At least one half of the total members nominated being women.

B. Powers: The IC has the powers of a Civil Court (as set out under Code of Civil Procedure, 1908):

- Examining on oath;
- Obtaining and production of documents;
- Summoning and enforcing attendance of parties and witnesses.
- May terminate proceedings if complainant fails, without sufficient cause, to be present for 3 consecutive hearings. The IC should provide 15 days prior notice in writing to complainant.
- May give ex-parte order if respondent fails, without sufficient cause, to be present for 3 consecutive hearings. The IC should provide 15 days prior notice in writing to the respondent.

C. Responsibilities: The IC will be responsible for:

- Receiving complaints of sexual harassment at the workplace;
- Initiating and conducting inquiry as per the established procedure;
- Submitting findings and recommendations of inquiries;
- Coordinating with the Employer in implementing appropriate steps for prevention and prohibition of sexual harassment;
- Maintaining strict confidentiality throughout the process as per established guidelines;
- Submitting annual reports in the prescribed format;
- Collaborate with the HR/relevant department to ensure that enough training and

communication is done on a regular basis;

- Propagate the values and culture of the organisation with respect to the gender diversity and acceptance;
- Walk the Talk - Ensure that one practices respect and equality in all respects at the workplace.

X. Redressal Mechanisms

It is the responsibility of the Head of Human Resources to notify the POSH Committee of any sexual harassment related complaint received by them. The Head of Human Resources or the HR department may provide advice or assistance to the complainant on the required procedures and available redressal mechanism.

An aggrieved person may make, in writing, a complaint of sexual harassment at workplace to the Internal Committee.

The complaint must be made within a period of 3 months from the date of incident/ last incident in case of a series of incidents. The Internal Committee can extend the timeline by another 3 months for reasons recorded in writing, if it is satisfied that these reasons prevented the lodging of the complaint within the period.

Provided that where such a complaint cannot be made in writing, the Presiding Officer or any Member of the Internal Complaint Committee shall render all reasonable assistance to the Aggrieved Person for making the complaint in writing.

The complaint shall be submitted by the complainant (or others as permitted by law) to the IC in writing or shall be submitted to the IC electronically at posh@meritgroup.co.uk (in case of employees at Chennai)/ posh.mumbai@meritgroup.co.uk (in case of employees at Mumbai) or to email address of any of the IC member. The complaint can also be physically submitted to any IC member.

XI. Essentials of a Complaint

- Name of the aggrieved, work, designation
- In case complainant is not able to file the complaint, then the relationship with the complainant and the consent form along with the reason for incapacity of the complainant;
- Date of the incident(s)/last incident;
- Name of the alleged harasser, designation, working relationship with the complainant;
- Details of the incident;
- Documents or evidence in support.

XII. Upon receipt of a complaint, the IC will follow the steps enumerated below:

- meet the Complainant in person to listen to their grievances and explain the process to be followed;
- decide whether the case falls within the ambit of sexual harassment and whether the complaint is admissible as per the requirements set out in the Act;
- if the complaint is deemed admissible, formally meet and decide on the Presiding Officer for the case in question and give it a name as per this format- IC Case No. (number of complaints received that year) (the relevant year).
- within seven days of receiving the complaint, inform the respondent in writing that a complaint has been received.
- arrange a meeting with the respondent to explain the complaint and the process to be followed.
- inform the respondent that they must respond to the complaint in writing within ten days.

There are two ways of redressal available as per law and the Aggrieved person shall be provided with both the options:

A. Informal Resolution procedure through conciliation

- Once the complaint is received, before initiating the inquiry, the Committee may take steps to conciliate the complaint between the complainant and the respondent. This is only if requested by the Aggrieved person.
- No monetary settlement can be made as a basis of conciliation.
- In case a settlement is arrived at, the Committee records and reports the same to the Employer for taking appropriate action.
- It is mandatory to ensure that both parties have consented to the conciliation process. In some cases, such as those in which the respondent is alleging that the complaint is malicious, they may wish to proceed directly with the inquiry process.
- It must be made clear to all parties that conciliation in itself does not necessarily mean acceptance of the complaint by the respondent. It is a practical mechanism through which issues are resolved, or misunderstandings are cleared.
- In case a settlement is arrived at, the IC records and reports the same to the Head of Operations for taking appropriate action. Resolution through conciliation happens within 2 weeks of receipt of the complaint.
- The IC provides copies of the settlement to the complainant and respondent. Once the action is implemented, no further inquiry is conducted.

B. Formal Resolution procedure through formal inquiry

The Committee will initiate an inquiry in the following cases:

- No conciliation is requested by Aggrieved person;
- Conciliation has not resulted in any settlement;
- Complainant informs the Committee that any term or condition of the settlement arrived through conciliation, has not been complied with by respondent.

In compliance with the Act, any complaint under this policy, if not settled through conciliation, shall be followed by a formal redressal mechanism as described in this Policy.

In the case of a formal redressal mechanism, IC must complete the same within 90 days from the date on which the written complaint was received.

Before proceeding with the inquiry, the POSH Committee may recommend one or more interim measures to the complainant depending on the facts and circumstances, during the pendency of the inquiry to prevent ongoing harassment, including but not limited to:

- a) separating the work duties of the complainant and respondent;
- b) providing the option of work from home;
- c) approving an extended leave of absence from work.

The IC shall then follow these steps:

- charges shall be framed based on the allegations made by the complainant in the written complaint. In case of allegations which fall outside the scope of sexual harassment, the IC shall forward these to the Head of Human Resources to take appropriate action.
- copy of the charges shall be shared with both parties, and they shall be requested to get back with a response within a specific time period (usually ten days).
- upon receiving a response from the parties along with the required documentation (if any), IC shall provide an opportunity to both the complainant and the respondent to cross-examine each other through the IC and record their responses.
- parties shall have the opportunity to present witnesses from their side to corroborate the statements made by them. The witnesses shall be examined in the presence of the IC and both parties shall be given an opportunity to cross question the witnesses presented by the other.
- IC will record all these meetings and maintain the minutes along with written records of each of these meetings.
- parties will also be provided with an opportunity to present other documental evidence such as screenshots, recordings, CCTV footage etc.
- it shall be the obligation of the parties to ensure all the witnesses listed by them are present before the IC on the scheduled date and to present all the documental evidence they want the IC to examine.
- after obtaining all the statements and documental evidence, the IC shall record the closing statements of both parties and proceed to draft the Final Report.

The IC must submit the final report to the Head of Operations for adjudication within **10 days** of completion of the inquiry.

The Final Report shall comprise of all the facts of the case, the witnesses and documental evidence examined by the IC, a description of the process followed along with the background information, the charges framed and whether each of the charges have been proved or disproved. Based on this, the IC will provide a list of

recommendations to be implemented by the Company.

XIV. Recommendations

Where the POSH Committee arrives at the conclusion that the allegation against the respondent has not been proved, it recommends that no action is required to be taken in the matter.

Where the Committee arrives at the conclusion that the charges against the respondent have been proved (or partly proved), it recommends the Employer to take necessary action in accordance with the applicable service rules and policies, and this may include:

- Issuance of a sternly worded warning letter condemning the respondent's behaviour;
- Undergoing counselling, gender sensitization courses, training on POSH Policy etc. in the manner described by the POSH Committee;
- Unconditional apology to be tendered to the complainant;
- Withholding promotions and/or increments;
- Suspension or termination;
- Directing the management to include a reference to this adverse finding in the Background Verification Report generated for the complainant in future when requested by their future employees;
- Any other action that the POSH Committee may deem fit.

XV. Implementation of recommendations

It is the responsibility of the Head of Operations to act upon these recommendations within 60 days of receiving the POSH Committee's recommendations.

If the Head of Operations is the respondent or complainant, the final report shall be sent to the CEO. If the CEO or the Board of Directors is the respondent or complainant, the report shall be sent to the Chairman.

If required, legal proceedings may also be initiated by Merit after receiving the final report.

XV. Malicious Allegations

Where the Committee arrives at any of the conclusions below, it may recommend the Employer to take action against the person making the complaint.

- a) the allegation against the respondent is malicious or
- b) the aggrieved person or others making the complaint have made the complaint knowing it to be false or
- c) the aggrieved person or others making the complaint have produced any forged or misleading document.

While deciding malicious intent, the Committee should consider that mere inability to substantiate a complaint need not mean malicious intent. Malicious intent must be clearly established through the inquiry process.

XVI. Appeal

A copy of the Final Report shall also be communicated to both the complainant and the respondent. Any party not satisfied or further aggrieved by the implementation or non-implementation of recommendations made may appeal to the appellate authority in accordance with the Act and rules, within 90 days of the recommendations being communicated to it by the Committee.

XVII. Confidentiality

The written complaint, identity of the parties, witnesses, statements and other evidence obtained in the course of inquiry process, Final Report and the recommendations mentioned therein, action taken by Merit etc., are all considered confidential information and should not be shared with any unauthorized third party for any reason whatsoever. This shall include the complainants, respondents, reporting managers and Department Heads of both parties. The parties must not record witness statements before, during or after an inquiry is being conducted by the Committee. Any person contravening the confidentiality clauses is subject to disciplinary action, including termination.

XVIII. Important Timelines

Activity	Timeline
Submission of written Complaint	Within 3 months of the incident and in case of a series of incidents, within a period of three months from the date of last incident: (Ensure that the written complaint is given within 24 hours of giving the verbal complaint).
Notice to the Respondent	Within 7 days of receiving the written complaint
Completion of Inquiry	Within 90 days of receiving the written complaint
Submission of Report by Committee to Head of Operations	Within 10 days of completion of the inquiry
Implementation of Recommendations	Within 30 days of submission of report
Appeal	Within 90 days of the recommendations

XIX. Points to note:

If the complainant or respondent is unavailable for a certain period of time due to circumstances beyond their control (for example due to sickness or hospitalization) and the Committee is unable to complete any of the aforementioned steps within agreed timelines, the reasons for the delay shall be recorded in writing and the timelines shall be extended accordingly.

Additionally, if a respondent wishes to resign or terminate his contract/employment with Merit during the pendency of an inquiry, the Committee shall be entitled to direct the concerned reporting manager to not accept their resignation until the proceedings are complete and the final report is submitted.

The Committee must ensure that a minimum quorum of four members are present during all the meetings held by the Committee, whether during an ongoing inquiry or otherwise.

XX. Additional steps to be taken in case a Complaint falls within the purview of Section 69 of Bharatiya Nyaya Sanhita (BNS)

If a complaint filed by a complainant falls within the ambit of Section 69 of BNS i.e. if an individual is accused of having sexual intercourse with a woman under the false promise of employment or promotion, it is vital that an FIR is filed by the complainant along with the inquiry conducted by the Committee. Therefore, the Committee must inform the complaint about the same and provide assistance in filing the FIR if requested by the complainant.

XXI. Merit POSH Committee

- Merit has constituted a POSH Committee responsible for overseeing compliance and related matters at both the Chennai and Mumbai offices.
- The POSH Committee is chaired by a senior female employee, and its members are selected from employees dedicated to advancing women's welfare.
- The POSH Committee also includes an external member from an organization with expertise in women's issues and experience in addressing sexual harassment.
- The POSH Committee members will convene monthly to review the status of ongoing cases conducted for employees and consider any updates to the applicable laws or regulations.
- The following table sets out the current members of the POSH Committee.

POSH Committee Members	Name	Job Title & Role
	Kathy Theophilus	Head of Data Operations – Chairperson
	Thenmozhi Elango	Data Insights Advisor- Committee Member
	Ronald Drooge	Senior Manager – Committee Member
	Aubrey John Stephens	Assistant Manager – HRBP, Committee Member
	Mahalakshmi Jayapal	Assistant Service Delivery Manager, Committee Member
	Sri Ranjini Kannan	Inhouse Lawyer (Corporate), Committee Member
	Pooja Chowdhary	Business Unit Head, Committee Member
	Rishad Kurian	Business Unit Head, Committee Member
	Hemamalini Shunmugam	Principal Test Engineer, Committee Member
	Shanas Fathima	External Committee Member, Committee Member

Incidents to be reported to HR or
on posh@meritgroup.co.uk (Chennai) and
posh.mumbai@meritgroup.co.uk (Mumbai)

SEXUAL HARASSMENT COMPLAINTS PROCEDURE

REPORT INCIDENT IMMEDIATELY

FORMAL MECHANISM

Notice sent to
respondent upon of
receipt of complaint

within 7 days

Investigations to be
completed by POSH
Committee upon receipt
of written complaint

90 days

Submission of report by
POSH Committee to
Head of Operations about
inquiry completion

10 days

Recommendations to
be implemented upon
report submission

60 days

Appeal of
recommendations
suggested

90 days

INFORMAL MECHANISM

Severity of issue to be assessed
by the POSH Committee followed
by conciliation

Resolution through conciliation
to happen upon receipt
of complaint

2 weeks

Merit follows the process mandated by the Sexual Harassment of
Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013

M E R I T

ANNEXURE I - SEXUAL HARASSMENT COMPLAINT FORM

Complainant Details

Name		Level	
Employee No.		Name of Immediate Supervisor	
Team		Contact Number	
Designation			

Respondent Details (If more than one, provide all known details)

Name		Level	
Employee No.		Name of Immediate Supervisor	
Team		Contact Number	
Designation		Employer (if other than Merit)	

Witness Details (If more than one, provide all known details)

Name		Level	
Employee No.		Name of Immediate Supervisor	
Team		Contact Number	
Designation		Employer (if other than Merit)	

Incident Details	Particulars
Date and time of incident (If more than one, kindly mention all the dates and times)	
Place of incident (If more than one, kindly mention all the places)	
Any oral or written evidence of the incident (attach copies of the documents, call recordings, images, etc., if any)	
Names and contact numbers of person(s) who the Complainant confided in about the incident before submitting this complaint (if applicable)	
Any further relevant details	

Please describe the incident in detail, including your reaction to incident



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